



CHAPTER cxli.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Caledonian Railway. A.D. 1904.
[22nd July 1904.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the Schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63, Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Caledonian Railway Order Confirmation Act 1904. Short title.

A.D. 1904.

SCHEDULE.

CALEDONIAN RAILWAY.

Provisional Order to confer further powers on the Caledonian Railway Company in relation to their Undertaking to authorise the Provost Magistrates and Town Council of the burgh of Hamilton to acquire and hold or dispose of certain lands in that burgh to extend the time for the purchase of lands and the completion of works by the Company and for other purposes.

WHEREAS it is expedient that the Caledonian Railway Company (hereinafter called "the Company") should be authorised to construct the railway in the burgh of Motherwell in the county of Lanark and to acquire and use for the purposes of their undertaking the lands in the counties of Lanark and Renfrew hereinafter respectively described :

And whereas the railway of the Company leading into their Hamilton Central Station and the bridges carrying Orchard Street and Park Road over that railway as well as certain adjoining property in the burgh of Hamilton have subsided owing to mineral workings and in order to enable the Company to restore their railway to its proper level it is expedient that they should be authorised to construct the new roads in the burgh of Hamilton and to stop up the portions of Orchard Street and Park Road and to carry out the other works in that burgh hereinafter mentioned :

And whereas the Company and the provost magistrates and town council of the burgh of Hamilton (hereinafter called "the town council") have entered into an agreement with reference to the said works in the burgh of Hamilton and the acquisition and use by the Company of certain lands of the town council in the said burgh and other matters and it is expedient that such agreement should be confirmed :

And whereas the town council have acquired or agreed to acquire in connection with their gas undertaking the lands in the burgh of Hamilton referred to in the said agreement and hereinafter described or certain rights and interests therein part of which lands will be required for one of the roads by this Order authorised and it is expedient that the acquisition of such lands by the town council should be authorised and sanctioned and that

the town council should be empowered to sell or dispose of any portion of such lands not required by them : A.D. 1904.

And whereas it is expedient that the periods limited for the purchase of lands for and for the completion of the several railways and works hereinafter mentioned should be extended :

And whereas it is expedient that the Company should be authorised to raise additional capital and to borrow further money for the purposes of this Order and that the other powers and provisions in this Order contained should be conferred on or made in relation to the Company and their undertaking :

And whereas plans and sections relating to the works authorised by this Order and plans of the lands which may be taken under the powers of this Order and books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the principal sheriff clerks of the counties of Lanark and Renfrew and are hereinafter referred to as the deposited plans sections and books of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Caledonian Railway Order 1904. Short title.

2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 Part I. (relating to construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863 the clauses and provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the following matters (that is to say) :— Incorporation of Acts.

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

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The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ; and

The giving of notices ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by any subsequent Act are (except where and as expressly varied by this Order) incorporated with and form part of this Order and all the provisions of the Companies Clauses Consolidation (Scotland) Act 1845 so incorporated with this Order which relate to stock into which shares in the capital of a Company have been converted or consolidated shall apply to the stock which the Company are by this Order authorised to issue and to the holders thereof.

This Order shall be deemed to be a special Act within the meaning of the Acts wholly or partially incorporated with this Order.

Interpretation.

3. In this Order unless there be something in the subject or context repugnant to such construction—

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings ;

The expression “ the Company ” means the Caledonian Railway Company ;

The expression “ the town council ” means the provost magistrates and town council of the burgh of Hamilton ;

The expression “ the railway ” means the railway by this Order authorised.

In the provisions of the Lands Clauses Acts incorporated with this Order—

The expression “ the promoters of the undertaking ” and other like expressions mean the Company or the town council as the case may require.

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In sections 7 8 and 9 of the Railways Clauses Consolidation (Scotland) Act 1845 incorporated with this Order— A.D. 1904.

The expressions “schoolmasters of the several parishes” and “schoolmasters” mean as regards any lands in a burgh the town clerk of such burgh and as regards any lands in a parish (outside a burgh) the clerk to the parish council of such parish.

4. Subject to the provisions of this Order the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railway and roads in the county of Lanark hereinafter described with all proper stations sidings junctions roads approaches and other works and conveniences in connection therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for those purposes (that is to say) :— Power to Company to make works.

(1) A railway in the parish of Dalziel and burgh of Motherwell (3 furlongs 3·90 chains in length) commencing by a junction with the Company's railway at a point one hundred and five yards or thereabouts northwards from the centre of the bridge carrying that railway over Glen Street and terminating at a point sixty-six yards or thereabouts north-westwards from the junction of Merry Street and Mill Road :

(2) A Road (No. 1) in the parish and burgh of Hamilton commencing at a point in Bent Road one hundred and sixty yards or thereabouts westwards from the junction of Park Road and Bent Road and terminating at a point in Union Street fifty-eight yards or thereabouts south-eastwards from the centre of the bridge carrying Union Street over Cadzow Burn :

(3) A Road (No. 2) in the parish and burgh of Hamilton commencing at a point in Road (No. 1) two hundred and three yards or thereabouts south-westwards from the centre of the said bridge carrying Union Street over Cadzow Burn and terminating at a point in Quarry Street forty-three yards or thereabouts south-westwards from the centre of the bridge carrying Quarry Street over the Company's railway at Hamilton Central Station.

5. The facilities accommodations and other rights including contingent running powers possessed by the North British Railway For protection of North British Rail-

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way Com-
pany.

Company upon and over the Wishaw and Coltness Railway of the Company under the Caledonian Railway (Lanarkshire and Midlothian Branches) Act 1866 shall extend and apply to the railway by this Order authorised.

Power for
Company to
acquire cer-
tain lands.

6. Subject to the provisions of this Order and in addition to the other lands which the Company are by this Order authorised to acquire the Company may enter upon take and use for the purposes of their undertaking the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference (that is to say) :—

In the county of Lanark—

- (A) Certain lands in the parish of Dalziel and burgh of Motherwell on the north side of Glen Street and on the west side of and adjoining the Company's railway opposite Braidhurst Rows ;
- (B) Certain lands in the parish and burgh of Hamilton on the north side of and adjoining the Company's railway and on the west side of and adjoining Orchard Street ;
- (C) Certain lands known as Allanbank in the parish and burgh of Hamilton on the south side of and adjoining the Company's railway and lying between that railway and Quarry Street :

In the county of Renfrew—

- (D) Certain lands in the parish and partly in the burgh of Paisley on the north side of and adjoining the Glasgow and South Western Railway Company's Paisley Canal Line and on the east side of and adjoining Chain Road numbered ten to seventeen inclusive on the said deposited plans.

For protec-
tion of Glas-
gow and
South West-
ern Railway
Company.

7. The Company shall not without the consent of the Glasgow and South Western Railway Company purchase or take any portion of the land marked with the number fifteen of the parish of Paisley on the deposited plans belonging to that Company south of a point one hundred and fourteen yards north of the centre of the bridge carrying the Glasgow and South Western Railway over Chain Road.

Confirming
acquisition
of certain
lands.

8. Whereas certain portions of the lands referred to in the section of this Order the marginal note of which is "Power for Company to acquire certain lands" have already been acquired by

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the Company Therefore the acquisition of such lands is hereby sanctioned and confirmed as if the same had been acquired under the provisions of this Order Provided that the whole reservations conditions and obligations specified and contained in (first) disposition granted by Miss Janet Addie and Miss Isabella Addie both residing at Braidhurst Motherwell the then surviving original trustees of the deceased Alexander Addie of Braidhurst and Milton in the county of Lanark and as such trustees then vested to the extent of three-fourth parts or shares pro indiviso in the lands therein disposed and by the said Janet Addie and Isabella Addie as individuals and as joint proprietresses to the extent of one-fourth part or share pro indiviso of the said lands in favour of the Company dated the ninth and recorded in the division of the general register of sasines applicable to the county of Lanark the fourteenth both days of November one thousand nine hundred and (second) disposition by the said Janet Addie and Isabella Addie David Baird Smith writer in Glasgow Mrs. Marion Addie or Forrest wife of John Forrest doctor of medicine Motherwell and James Muirhead writer in Glasgow the surviving trustees original and assumed of the said deceased Alexander Addie and by the said Janet Addie Isabella Addie and Marion Addie or Forrest as individuals in favour of the Company dated twenty-sixth and twenty-seventh December one thousand nine hundred and one and recorded in the said division of the general register of sasines the twenty-third day of January one thousand nine hundred and two shall notwithstanding anything in this Order contained remain in full force and effect and be binding on the Company and their successors and the lands included in the said dispositions and provided always that the provisions of section 78 of the Railways Clauses Consolidation (Scotland) Act 1845 shall apply to the minerals referred to in the said dispositions.

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9. If the railway and roads by this Order authorised are not completed within five years from the passing of the Act to confirm this Order then on the expiration of that period the powers by this Order granted for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for completion of works.

10. The railway shall be part of the undertaking of the Company and for the purposes of tolls rates and charges shall be deemed part of the Company's railway with which it forms a junction.

Tolls on railway.

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Height and
span of
bridge.

11. The Company may make the arch of the bridge for carrying the railway over the roads next hereinafter mentioned of any height and span not less than the height and span hereinafter prescribed in connection therewith (that is to say) :—

Nos. on deposited Plans.	Parish.	Description of Road.	Height.	Span.
3	} Dalziel - -	Public - -	Feet.	Feet.
4			15	40

Stopping up
portion of
road in
Motherwell.

12. The Company may subject to the provisions of the section of this Order the marginal note of which is “Confirming acquisition of certain lands” in the construction of the railway stop up and appropriate so much of the private road in the parish of Dalziel and burgh of Motherwell leading from Vulcan Street to Bridge Street as lies between a point about one hundred and ten yards and a point about one hundred and thirty-five yards westwards from the centre of Mill Road at its junction with Vulcan Street and thereupon all rights of way (if any) over such portion of road shall be extinguished.

Stopping up
portions of
roads in
Hamilton.

13.—(1) The Company may in connection with the works in the parish and burgh of Hamilton by this Order authorised stop up and cause to be discontinued as public roads the portion of Orchard Street lying between a point forty-two yards or thereabouts north-eastwards and a point twenty-five yards or thereabouts south-westwards from the centre of the bridge carrying that street over the Company’s railway leading into the Hamilton Central Station and the portion of Park Road lying between a point seventeen yards or thereabouts north-eastwards and a point twenty-six yards or thereabouts south-westwards from the centre of the bridge carrying that road over the same railway And the Company may remove the above-mentioned bridges carrying Orchard Street and Park Road over their said railway and shall make a footpath with a footbridge over the railway from Park Road on the south side to Orchard Street on the north side of the said railway.

(2) The Company shall not stop up the said portions of Orchard Street and Park Road or remove the above-mentioned bridges until the roads by this Order authorised and the above-mentioned footpath and footbridge shall be completed to the reasonable satisfaction of the town council and opened for public use.

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(3) Upon the completion of the roads and the above-mentioned footpath and footbridge as aforesaid all rights of way over or along the said portions of Orchard Street and Park Road so to be stopped up and over the said bridges so to be removed shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to mines lying under or near the railway appropriate and use for the purposes of their undertaking the sites thereof so far as the same are bounded on both sides by property of the Company :

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—

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

14. The roads by this Order authorised and the footpath to be constructed by the Company as aforesaid from Park Road to Orchard Street shall when completed form part of the public streets and paths in the burgh of Hamilton and shall be maintained by the town council as such.

Future
maintenance
of roads and
footpath.

15. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which other persons than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Power to
take servi-
tudes &c. by
agreement.

16. The quantity of land to be acquired by agreement by the Company for the extraordinary purposes mentioned in the Railways Clauses Consolidation (Scotland) Act 1845 in connection with the works authorised by this Order shall not exceed five acres in addition to the lands which the Company are authorised by this Order to take compulsorily but nothing in that Act or in this Order shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so acquired by agreement.

Lands for ex-
traordinary
purposes.

17. Without prejudice to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 incorporated with this

Power to
Company to
deviate.

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A.D. 1904. Order the Company may in the construction of the railway and roads by this Order authorised deviate from the lines thereof delineated on the deposited plans to any extent within the limits of deviation shown on such plans and may deviate vertically from the levels of the roads shown on the deposited sections to any extent not exceeding five feet and the Company shall in the event of such vertical deviation exceeding two feet pay compensation to any person who may be injuriously affected by such increased deviation.

Owners may
be required
to sell parts
only of cer-
tain pro-
perties.

18. And whereas it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of this Order and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in any of the properties described in the First Schedule to this Order and whereof parts only may be required for the purposes of this Order may (if the same can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of the premises without material detriment thereto) be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions taken by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise Provided that if in any case in the opinion of the jury arbiters or other authority as aforesaid any such portions cannot be severed from the remainder of such property without material detriment thereto the Company may at any time within one month after the date of the final decision of such jury arbiters or other authority withdraw their notice to treat for the portions required by them and thereupon they shall pay to the owners of and other parties interested in the property in respect of any portions of which they have given notice to treat all loss and damage sustained and all costs charges and expenses (as the same shall be taxed as between solicitor and client) reasonably incurred by them in consequence of such notice Provided also that nothing in this section contained shall be held as determining whether the properties described in the said Schedule are or are not subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

19. And whereas in order to avoid in the execution and main-
 tenance of any works authorised by this Order injury to the houses
 and buildings within one hundred feet thereof it may be neces-
 sary to underpin or otherwise strengthen the same therefore the
 Company at their own costs and charges may and if required by
 the owners or lessees of any such house or building shall subject
 as hereinafter provided underpin or otherwise strengthen the same
 and the following provisions shall have effect (that is to say) :—

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Company
 empowered
 or may be
 required to
 underpin or
 otherwise
 strengthen
 houses.

- (1) At least ten days' notice shall unless in case of emer-
 gency be given to the owners lessees and occupiers or
 by the owners or lessees of the house or building so
 intended or so required to be underpinned or otherwise
 strengthened :
- (2) Each such notice if given by the Company shall be served
 in manner prescribed by section 18 of the Lands Clauses
 Consolidation (Scotland) Act 1845 and if given by the
 owners or lessees of the premises to be underpinned
 or strengthened shall be sent to the principal office of
 the Company :
- (3) If any owner lessee or occupier of any such house or
 building or the Company as the case may require shall
 within seven days after the giving of such notice give
 a counter notice in writing that he or they as the case
 may be dispute the necessity of such underpinning or
 strengthening the question of the necessity shall be
 referred to an engineer to be agreed upon or in case
 of difference to an engineer to be appointed at the
 instance of either party by the Board of Trade :
- (4) Such referee shall forthwith upon the application of either
 party proceed to inspect such house or building and
 determine the matter referred to him and in the event
 of his deciding that such underpinning or strengthening
 is necessary he may and if so required by such owner
 lessee or occupier he shall prescribe the mode in which
 the same shall be executed and the Company may and
 shall proceed forthwith so to underpin or strengthen
 the said house or building :
- (5) The Company shall be liable to compensate the owners
 lessees and occupiers of every such house or building
 for any inconvenience loss or damage which may result
 to them by reason of the exercise of the powers granted
 by this enactment :

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- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company from the liability to compensate under the Lands Clauses Consolidation (Scotland) Act 1845 or under any other Act :
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts :
- (9) Nothing in this section shall repeal or affect the application of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

Penalty imposed unless railway opened within time limited.

20. If the Company fail within the period limited by this Order to complete the railway the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Order and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 and every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the King's and Lord Treasurer's Remembrancer on behalf of the Court of

Exchequer in Scotland in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided but no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the railway by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control. A.D. 1904.

21. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property for the railway conferred by this Order and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit and if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company is insolvent or the railway or any part thereof has been abandoned be paid or transferred to such judicial factor or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid to the Company. Application of penalty.

22. The agreement between the Company and the town council set forth in the Second Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto and the roads and other works to be constructed in the burgh of Hamilton under this Order shall so far as such agreement relates thereto and is not inconsistent with this Order be carried out in accordance with the provisions of that agreement. Confirmation of agreement with town council of Hamilton.

23. The agreement between the Company and James Coats junior Ferguslie Paisley and Sir Thomas Glen Coats Baronet of Confirmation of agreement with James

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A.D. 1904. Ferguslie Park there set forth in the Third Schedule to this
Coats junior Order is hereby sanctioned and confirmed and made binding on
and Sir the parties thereto.
Thomas
Glen Coats.

Power for
town council
to acquire
certain lands.

24. Subject to the provisions of this Order the town council may take purchase or otherwise acquire compulsorily or by agreement and may hold and use for the purpose of providing siding connection from the Company's railway to the gasworks and for the other purposes of the town council's gas undertaking and may sell lease or otherwise dispose of the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference or some of them (that is to say) :—

Certain lands in the parish and burgh of Hamilton on the south side of and adjoining the Company's railway and lying between that railway and Quarry Street and partly adjoining the lands (c) hereinbefore described on the eastern side thereof :

Provided that such lands shall not be used by the town council for the purpose of the manufacture or conversion of gas or residual products.

Confirming
acquisition
of lands by
town council.

25. Whereas the lands referred to in the last preceding section or certain rights and interests therein have already been acquired by the town council therefore the acquisition thereof by the town council is hereby sanctioned and confirmed as if the same had been acquired under the provisions of this Order.

Period for
compulsory
purchase of
lands.

26. The powers for the compulsory purchase of lands under this Order shall cease after the expiration of three years from the passing of the Act to confirm this Order.

Extension
of time for
purchase of
lands for and
completion
of works
under Act
of 1901.

27. The powers for the compulsory purchase and taking of lands granted by the Caledonian Railway Act 1901 in respect of Railways Nos. 2 and 3 and the lengthening of the bridge carrying Crawford Street over the Company's railway near Eglinton Street Station Glasgow authorised by that Act are hereby extended and may be exercised by the Company at any time within but shall cease after the expiration of two years from the twenty-sixth day of July one thousand nine hundred and four and the period limited by the same Act for the completion of the said railways and works is hereby extended for three years from the expiration thereof that is until the twenty-sixth day of July one thousand nine hundred and nine.

28. The periods limited for the completion of the railways and works hereunder respectively mentioned are hereby respectively extended as follows (that is to say):—

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 —
 Extending
 periods for
 completion
 of certain
 railways and
 works.

- (1) The period limited by the Caledonian Railway (Edinburgh Leith and Newhaven Extension Lines) Act 1890 for the completion of the railways authorised by that Act and therein called Railways Nos. 2 3 5 and 6 as extended by the Caledonian Railway Act 1894 the Caledonian Railway Act 1898 and the Caledonian Railway Act 1901 is extended for three years from the expiration of the said period that is until the fourth day of August one thousand nine hundred and seven except as regards that portion of Railway No. 2 which was abandoned by the Caledonian Railway Act 1894 :
- (2) The period limited by the Caledonian Railway (Edinburgh and Leith Lines) Act 1891 for the completion of the railways authorised by that Act and therein called Railways Nos. 4 and 5 as extended by the Caledonian Railway Act 1894 the Caledonian Railway Act 1898 and the Caledonian Railway Act 1901 is extended for three years from the expiration of the said period that is until the third day of July one thousand nine hundred and seven :
- (3) The period limited by the Caledonian Railway Act 1896 for the completion of Railways Nos. 1 to 6 inclusive and Railway No. 8 authorised by that Act as extended by the Caledonian Railway Act 1901 is extended for three years from the expiration of the said period that is until the twentieth day of July one thousand nine hundred and seven :
- (4) The period limited by the Caledonian Railway (General Powers) Act 1899 for the completion of the Railway and Station Widening (No. 1) and Railways Nos. 3 8 and 9 and the extension and enlargement of the Company's pier at Wemyss Bay authorised by that Act is extended for three years from the expiration of the said period that is until the ninth day of August one thousand nine hundred and seven :
- (5) The period limited by the Paisley and Barrhead District Railway Act 1897 for the completion of Railways Nos. 5 and 6 authorised by that Act as extended by the

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Caledonian Railway Act 1901 is extended for three years from the expiration of the said period that is until the sixth day of August one thousand nine hundred and eight :

(6) The period limited by the Paisley and Barrhead District Railway Act 1899 for the completion of Railway No. 6 authorised by that Act is extended for three years from the expiration of the said period that is until the ninth day of August one thousand nine hundred and seven :

(7) The period limited by the Aberdeen Joint Passenger Station Act 1899 for the completion of Railway No. 1 and the reconstruction and extension of the bridge at Craiginches authorised by that Act is extended for three years from the expiration of the said period that is until the ninth day of August one thousand nine hundred and seven :

And the sections of the above Acts which relate to the periods for the completion of the said railways and works respectively and to the penalties exigible in the event of the same not being completed within the said respective periods shall be read and construed as if the respective periods for such completion referred to in those sections did not expire until the expiration of the extended periods hereby limited respectively.

For protection of trustees of Clyde Navigation.

29. Nothing contained in this Order shall be construed as extending the period fixed by the ninth clause of the agreement between the Company and the trustees of the Clyde Navigation scheduled to and confirmed by the Caledonian Railway (General Powers) Act 1899 for the temporary use of the lands quays and waterway in the said clause mentioned without prejudice however to the said trustees consenting in writing to extend such period if they think fit.

Restrictions on displacing persons of labouring class.

30.—(1) The Company or the town council respectively shall not under the powers of this Order or under the powers of any former Act extended by this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December next before the passing of the Act confirming this Order or of the former Act by which the purchase or acquisition was originally authorised were or have been since that day or shall hereafter be

occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers unless and until— A.D. 1904.

(A) They shall have obtained the approval of the Secretary for Scotland to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number of persons as the Secretary for Scotland shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) They shall have given security to the satisfaction of the Secretary for Scotland for the carrying out of the scheme.

(2) The approval of the Secretary for Scotland to any scheme under this section may be given either absolutely or conditionally and after the Secretary for Scotland has approved of any such scheme he may approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced:

Provided that the Secretary for Scotland may dispense with the last-mentioned requirement subject to such conditions (if any) as he may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Secretary for Scotland may have approved of any such scheme or of any modifications of any such scheme or subject to which he may have dispensed with the above-mentioned requirement shall be enforceable by an order of the Court of Session to be obtained by the Secretary for Scotland.

(5) If the Company or the town council acquire or appropriate any house or houses in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they

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A.D. 1904. shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company or the town council may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase section 145 of the Public Health (Scotland) Act 1897 shall be incorporated with this Order and shall apply to the purchase of lands by the Company or the town council for the purposes of any scheme under this section in the same manner in all respects as if the Company or the town council were a local authority within the meaning of that Act and the scheme were one of the purposes of that Act.

(7) The Company or the town council may on any lands belonging to them respectively or purchased or acquired under this section or under any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for any of the purposes of this section to which capital is properly applicable any moneys belonging to them :

Provided that all lands on which any buildings have been erected or provided in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance or lease of such lands and buildings shall contain proper provisions to secure during such period of twenty-five years the use of the buildings on such lands for the purpose of such dwellings and shall be endorsed with notice of this enactment:

Provided that the Secretary for Scotland may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as he may see fit.

(8) The Secretary for Scotland may direct any inquiries to be held which he may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of

this section and he and any person appointed by him to hold inquiry shall have and may exercise for any purpose in connection with any scheme under this section all or any of the powers vested in them respectively under the Public Health (Scotland) Act 1897 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act. A.D. 1904.

(9) The Company or the town council as the case may require shall pay to the Secretary for Scotland any expenses incurred by him in relation to any inquiries under this section including the expenses of any witnesses summoned by the person appointed to hold any such inquiry and a sum to be fixed by the Secretary for Scotland not exceeding three guineas a day for the services of the person so appointed.

(10) Any houses purchased or acquired by the Company or the town council respectively for or in connection with any of the purposes of this Order whether purchased or acquired in exercise of the powers conferred by this Order or otherwise and whether before or after the passing of the Act to confirm this Order which may have been occupied by persons of the labouring class within five years before the passing of such Act and for which houses no substitutes have been or are directed to be provided by any scheme approved by the Secretary for Scotland under the powers of any previous Act shall for the purposes of this section be deemed to have been acquired under the powers of this Order and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Secretary for Scotland is unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Secretary for Scotland they might have been sufficient to accommodate.

(11) For the purposes of this section—

The expression “house” means any house or part of a house occupied as a separate dwelling; and

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft

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without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Application
of funds of
Company.

31. The Company may apply towards any of the purposes authorised by this Order to which capital is properly applicable any capital or funds belonging to or authorised to be raised by them and which may not be required for the purposes for which the same were authorised to be raised or directed to be applied.

Power for
Company
to raise addi-
tional capital.

32. The Company may for any of the purposes of this Order raise subject to the provisions of Part II. of the Companies Clauses Act 1863 as amended by any subsequent Act additional capital not exceeding in nominal amount the sum of twenty-four thousand pounds by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person or corporation accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof. Provided that if in any year ending on the thirty-first day of January there are not profits available for the payment of the full amount of preferential dividend or interest for that year on any such new preference shares or stock no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Except as
otherwise
provided
new shares
or stock to
be subject to
same inci-
dents as
other shares
or stock :

33. Except as by this Order otherwise provided the capital in new shares or stock created by the Company under this Order and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

And to form
part of capital
of Company.

34. The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends on
new shares
or stock.

35. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders

of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be. A.D. 1904.

36. Each holder of new shares or stock in the capital by this Order authorised to be raised shall be entitled to the same number of votes in respect thereof which the possession of an equal nominal amount of the existing capital stock of the Company would have conferred upon him. Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned. Votes in respect of new shares or stock.

37. Subject to the provisions of any Act or Order already passed or made by which the Company are authorised to raise capital by new shares or stock and to the provisions of this Order and of any other Act or Order passed or made in the present Session of Parliament by which the Company may be authorised to raise capital by new shares or stock the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Acts or Orders and this Order respectively authorised to raise by the creation and issue of new shares or stock. New shares or stock raised under this Order and other Acts or Orders may be of same class.

38. The Company may in respect of the additional capital of twenty-four thousand pounds which they are hereinbefore authorised to raise borrow on mortgage of their undertaking any sums not exceeding in the whole eight thousand pounds but no part thereof shall be borrowed until the whole of the said additional capital is issued and accepted and one-half thereof is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that the whole of such capital has been issued and accepted and that one-half thereof has been paid up and that not less than one-fifth part of the amount of each separate share and the whole amount of the stock in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such capital was issued bonâ fide and is held by the persons to whom the same was issued or their executors administrators successors or assignees and that such persons or their executors administrators successors or assignees are legally liable for the same and upon production to such sheriff of the books of the Company and of such other Power for Company to borrow.

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Act, 1904.

A.D. 1904. — evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Arrears may be enforced by appointment of a judicial factor.

39. The mortgagees of the Company under this Order or any previous Act or Order may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall be not less than ten thousand pounds in the whole.

Power to create debenture stock.

40. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by any subsequent Act but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of the Act confirming this Order created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of the Act confirming this Order granted by the Company and shall have priority over all principal money secured by such mortgages.

Existing mortgages to have priority.

41. All mortgages granted by the Company before the passing of the Act confirming this Order and subsisting at the passing thereof shall during the continuance of such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Application of moneys.

42. All moneys raised by the Company under this Order whether by shares or stock or debenture stock or borrowing shall be applied only to those purposes of this Order to which capital is properly applicable.

Interest not to be paid on calls paid up.

43. No interest or dividend shall be paid out of any share or loan capital which the Company are by this Order authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Order shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.

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Act, 1904.

44. Nothing in this Order shall be deemed to impose upon the Postmaster-General the obligation of transmitting under the provisions of the Telegraph Act 1868 or any agreement between the Postmaster-General and the Company made in pursuance thereof any larger number of telegraphic messages of the Company free of charge than he would have been bound to transmit had this Order not become law.

A.D. 1904.
For protec-
tion of Post-
master-
General.

45. Nothing in this Order contained shall exempt the Company or the railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of the Act confirming this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Order.

Provision
as to general
Railway
Acts.

46. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company.

Costs of
Order.

SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

**HOUSES BUILDINGS OR MANUFACTORIES PARTS ONLY OF WHICH
MAY BE TAKEN.**

Parish.	Nos. on deposited Plans.
RAILWAY.	
Dalziel - - - -	- 17 20 21 22.
ROAD No. 1.	
Hamilton - - - -	- 2 4 5 6 7 11 12 13.
ROAD No. 2.	
Hamilton - - - -	- 18 26 28 29.
LANDS (B).	
Hamilton - - - -	- 32.

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A.D. 1904.

THE SECOND SCHEDULE.

AN AGREEMENT made this twenty-eighth day of April one thousand nine hundred and three between the CALEDONIAN RAILWAY COMPANY (hereinafter referred to as "the Company") of the one part and the PROVOST MAGISTRATES AND TOWN COUNCIL OF THE BURGH OF HAMILTON (hereinafter referred to as "the town council") of the other part.

WHEREAS the Company have under the Private Legislation Procedure (Scotland) Act 1899 made application to the Scotch Secretary in the present session of Parliament for a Provisional Order for the purpose inter alia of authorising the Company to stop up Orchard Street and to raise the level of Park Road and to make a new road or street between the said streets in the burgh of Hamilton :

And whereas the town council have petitioned against the application for the said Provisional Order :

And whereas on the treaty between the Company and the town council the Company submitted to the town council a substitute scheme in lieu of the works proposed by the said Order under which the Company propose to stop up both Orchard Street and Park Road and to construct a new road or street from Bent Road to Union Street and another new road or street on the south side of the railway from the first-mentioned new road or street to Quarry Street with a footbridge over the Company's railway at Orchard Street and a footpath on the north side of the railway from Park Road to Orchard Street :

And whereas the town council have agreed to said substitute scheme on the terms and conditions after-mentioned :

And whereas it is incompetent under the General Orders to include the said substitute scheme in the draft Provisional Order for which application has been made by the Company as aforesaid and it has accordingly been agreed that the powers applied for in the present Provisional Order shall be withdrawn therefrom :

Therefore the parties have agreed and do hereby agree and bind and oblige themselves as follows :—

1. The Company shall withdraw from the said Draft Provisional Order for which application has been made to the Scotch Secretary the provisions relating to the stopping up of Orchard Street and the raising of Park Road and the construction of a new road between Orchard Street and Park Road and also the provisions of the Order relating to the acquisition by the Company of additional land at Orchard Street and Park Road and the town council shall not oppose any application by the Company within two years from seventeenth December one thousand nine hundred and three for a Provisional Order to carry out the substitute scheme proposed by the Company as such substitute scheme is shown on the plan and section marked

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numbers one and two respectively annexed and signed by the parties as relative hereto but in any such application the town council may apply to be heard for the purpose of securing that effect shall be given to the provisions of this Agreement. A.D. 1904.

2. The proposed road or street from Bent Road to Union Street (hereinafter referred to as "Street No. 1") shall be formed at a width of not less than thirty-six feet and the proposed road or street from the Street No. 1 to Quarry Street (hereinafter referred to as "Street No. 2") shall be formed of a width of not less than forty feet. The said streets numbers one and two shall be formed with footpaths of five feet or in the option of the town council of six feet in width on either side and shall be properly kerbed and channelled and the footpaths shall be paved with granolithic and the carriageway of the street number one shall be macadamised and the roadway of street number two shall be causewayed all to the reasonable satisfaction of the town council.

3. On the completion of the said streets numbers one and two to the reasonable satisfaction of the town council they shall be taken over and maintained by the town council in all time coming as public streets of the burgh and the Company shall be relieved of all liability under Act of Parliament or otherwise in relation thereto. The footbridge over the Company's railway at Park Road shall not be less than five feet in width and the footpath from Park Road to Orchard Street shall also be not less than five feet in width and on the completion of the said footpath it shall be maintained in all time coming by the town council and the Company shall be relieved of all liability in relation thereto.

4. The Company shall in connection with the stopping up of Orchard Street and Park Road and the construction of the streets numbers one and two make provision to the reasonable satisfaction of the town council and at the expense of the Company for any alterations or removal and replacement of any sewers and water and gas pipes of the town council which may be rendered necessary by such alterations removal or replacement and all works in connection with such sewers water and gas pipes shall be carried out at the sight of the engineer or burgh surveyor of the town council.

5. The town council shall sell and convey to the Company for the purpose of constructing street number two the portions of the properties acquired by the town council from Whiteford and Dixon shown coloured red on the plan marked number three annexed and signed by the parties as relative hereto as also the small piece of ground also coloured red on the said plan. The Company shall pay to the town council the sum of five hundred pounds as the price and compensation for the said ground and for the ground occupied by the embankments of the said street number two as such ground is shown coloured blue on the said plan number three which ground shall remain the property of the town council. The Company shall also pay to the town council a proportion corresponding to the area to be acquired by the Company from the town council of any compensation which may be paid by the town council to the tenant of the orchard of which such ground is a part.

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6. Whereas the town council have acquired from the Misses King the property in Low Quarry Street known as Allanbank at the price of eight hundred pounds and it has been agreed that the town council shall hand over the said property to the Company partly for the purpose of constructing the street number two and reinstating the Company in respect of the part of their property to be occupied by the said street number two the town council agree that the said property shall be conveyed by the Misses King to the Company and that they shall execute or consent to all necessary deeds and writings for that purpose and the Company shall free and relieve the town council of all expense and liability in connection with the purchase and conveyance of said property provided that the Company shall throw into the footpath in Low Quarry Street so much of the said property as projects beyond the building line of said street and shall at their own cost form such widening of the footpath.

7. Whereas the town council propose to construct a siding connection from the Company's railway to the town council's gas works in Quarry Street and have acquired Whiteford and Dixon's properties before referred to for that purpose And whereas the town council may desire to obtain statutory power to hold and use the said properties for such purpose the Company will if so required by the town council in the Company's application for a Provisional Order to carry out the substitute scheme of works hereinbefore mentioned include an application by the town council for power to hold and use the said properties as aforesaid.

8. If any difference shall arise between the Company and the town council as to the meaning of this Agreement or as to any matter or thing arising out of the same including the terms of the clauses inserted in the Provisional Order to give effect to this Agreement such difference shall be settled by the Solicitor-General for Scotland as sole arbiter and the expenses of any arbitration shall be in the discretion of the arbiter.

In witness whereof these presents consisting of this and the two preceding pages and the marginal addition on page first hereof (under the declaration before subscription that the words "in any future session of Parliament" occurring on the fortieth line of page first are deleted and that the word "two" occurring on the thirtieth forty-eighth and forty-ninth lines of page second are written on erasures) are along with the said relative plans and section numbers one two and three respectively hereto annexed executed in duplicate by the parties hereto as follows viz. :—(They are sealed with the common seal of the Company and subscribed by the parties hereto as follows viz. :) They are sealed with the common seal of the Company and subscribed by Hugh Brown and James Neilson two of the directors and by John Blackburn the secretary all of and for and on behalf of the Company all at Glasgow on the twenty-eighth day of April one thousand nine hundred and three before these witnesses John Smeaton and John Richmond both clerks to the Company in their secretary's office in Glasgow and they are also subscribed by Henry Shanks Keith Provost and William Pollok and Peter Murray Kirkpatrick joint town clerks of said burgh of Hamilton and sealed

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with the common seal of said burgh at a meeting of town council of said burgh on the ninth day of June one thousand nine hundred and three before these witnesses Robert Main reporter Hamilton and Charles Simpson Robertson town officer in said burgh. A.D. 1904.



HUGH BROWN Dr.
JAS. NEILSON Dr.
J. BLACKBURN Secy.

JOHN SMEATON Witness.
JOHN RICHMOND Witness.



HENRY S. KEITH Provost.

WM. POLLOK
P. M. KIRKPATRICK

} Town
Clerks.

ROBERT MAIN Witness.
CHARLES S. ROBERTSON Witness.

THE THIRD SCHEDULE.

MINUTE OF AGREEMENT dated the second May one thousand nine hundred and four between the CALEDONIAN RAILWAY COMPANY of the first part JAMES COATS Junior of Ferguslie Paisley and Sir THOMAS GLEN COATS Baronet of Ferguslie Park of the second part.

WHEREAS the first party in December last made application to the Scotch Secretary for a Provisional Order to empower them to purchase and take for the purposes of their undertaking certain lands in the parish and partly in the burgh of Paisley on the north side of and adjoining the Glasgow and South Western Railway Company's Paisley Canal Line and on the east side of and adjoining Chain Road of which lands part belongs to the second party and part to Robert Brown and Son Limited Ferguslie Fireclay Works Paisley And whereas the second party lodged a petition against the proposed Provisional Order And whereas on the treaty between the first and second parties for the settlement of the second party's opposition to the said proposed Provisional Order it has been agreed between the parties hereto as underwritten Therefore the parties have agreed and do hereby agree and bind and oblige themselves as follows:—

1. The first party shall not without the consent of the second party purchase or take any part of the said lands described in and scheduled to the

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A.D. 1904. — said Provisional Order other than or beyond the portion thereof delineated and coloured red on the plan annexed and signed as relative hereto being the whole or part and portion of the properties marked with the numbers 10 to 17 inclusive of the said parish of Paisley on the deposited plans referred to in the Draft Provisional Order.

2. Whereas the second party is in course of negotiating with the said Robert Brown and Son Limited for the sale to them of a portion of the remaining ground described in and scheduled to the said Provisional Order and marked with the numbers 18 to 23 inclusive of the said parish of Paisley on the said deposited plans the second party in the event of their not selling to the said Robert Brown and Son Limited the said portion of the remaining ground shall grant to the first party an heritable or perpetual wayleave or right of way in and over the part thereof delineated and coloured blue on the said plan annexed and signed as relative hereto for the purpose only of making maintaining and using thereon a siding in extension of railway number six and the sidings and works connected therewith authorised by the Paisley and Barrhead District Railway Act 1899 to and into the property of the said Robert Brown and Son Limited.

3. The purchase money and compensation to be paid by the first party to the second party for and in respect of the land to be purchased and taken by the first party as aforesaid and in respect of the wayleave to be granted to the first party by the second party as aforesaid shall be fixed and determined in terms of the Railways Clauses and Lands Clauses Consolidation (Scotland) Acts 1845.

4. The ground to be purchased and taken by the first party as aforesaid shall to an extent not less than the portion thereof hatched red on the said plan annexed and assigned as relative hereto be used for the purpose of the said railway number six and the sidings and works connected therewith and the first party shall be bound to intimate to the second party on or before the eleventh day of November one thousand nine hundred and four the portion thereof if any not required for such purposes being not greater than the unhatched portion thereof shown on the said plan annexed and signed as relative hereto and such portion not required for said purposes shall thereupon be purchased and taken over from the first party by the second party.

5. The price to be paid by the second party to the first party for the said remaining portion of ground and erections thereon shall be a proportion of the total amount of the purchase money and compensation paid by the first party to the second party and all other persons therefor and for all rights and interests therein together with interest at the rate of four per centum per annum from the respective dates of disbursement by the first party as such proportion shall failing agreement be determined by Thomas Binnie land valuator Glasgow whom failing by James Barr C.E. Glasgow whom failing by Frank Burnet architect Glasgow as sole arbiter.

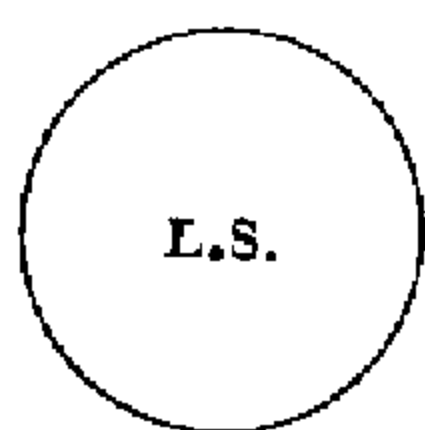
6. In respect the first party have by notices to treat under the powers of the said Paisley and Barrhead District Railway Act 1899 taken from the

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second party certain portions of the said lands described in and scheduled to the said Provisional Order the first party shall abandon and renounce the said notices and the same and all action and proceedings following thereon shall be of no force or effect whatever and neither party shall have any claim the one against the other in respect thereof. A.D. 1904.

7. This agreement is contingent on the passing of the said Provisional Order as modified in terms hereof and the confirmation thereof by Parliament subject to such alterations as may be made herein during the progress of the Order.

In witness whereof these presents consisting of this and the two preceding pages are executed in duplicate by the parties as follows (that is to say) They are signed by the said James Coats Junior and Sir Thomas Glen Coats at Paisley before these witnesses James Hamilton Dunn and John Dunn Allison both writers in Paisley and they are sealed with the common seal and signed by David Tod and Hugh Brown two of the directors and by John Blackburn secretary all of the said Caledonian Railway Company at Glasgow before these witnesses John Johnstone Haining and John Richmond both clerks in the secretary's office at Glasgow of the said Caledonian Railway Company declaring that the words "and the Order shall be altered accordingly" on the thirty-fifth line from the top of page first hereof are deleted all before subscription.



DAVID TOD Dr.
HUGH BROWN Dr.
J. BLACKBURN Secy.

J. J. HAINING Witness.
JOHN RICHMOND Witness.

JAS. COATS JR.
THOMAS GLEN COATS.

JAS. H. DUNN Witness.
J. D. ALLISON Witness.

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